COMMERCIAL LEASE AGREEMENT

(Office Space)

This Commercial Lease Agreement (the "Lease") is made as of August 31, 2024, by and between **Fairmont Commercial Trust Corp.**, a Colorado business entity ("Landlord"), and **Evergreen Coffee Roasters Inc.**, a Ohio business entity ("Tenant").

1. Premises

Landlord leases to Tenant, and Tenant leases from Landlord, the premises known as Suite 730, 544 Elm Street, Raleigh, NC 27601 (the "Premises"), consisting of approximately 5,700 rentable square feet, together with the non-exclusive right to use the common areas of the building (the "Building").

2. Term

The term of this Lease (the "Term") shall be forty-eight (48) months, commencing on October 1, 2024 (the "Commencement Date") and expiring at 11:59 p.m. on September 30, 2028 (the "Expiration Date"), unless sooner terminated in accordance with this Lease.

Landlord shall use reasonable efforts to deliver possession by September 26, 2024. Tenant may enter the Premises to install furniture and equipment from September 16, 2024, without payment of rent for that period.

3. Base Rent

Tenant shall pay base rent ("Base Rent") at the initial rate of $10,150.00 per month, payable in advance on the first day of each calendar month during the Term, without demand, deduction or setoff, by ACH transfer.

Base Rent shall increase by four percent (4%) on each anniversary of the Commencement Date over the Base Rent for the preceding Lease Year. Parking is charged separately at $175.00 per space per month.

Lease Year	Period	Monthly Base Rent
1	Oct 1, 2024 - Sep 30, 2025	$10,150.00
2	Oct 1, 2025 - Sep 30, 2026	$10,556.00
3	Oct 1, 2026 - Sep 30, 2027	$10,978.24
4	Oct 1, 2027 - Sep 30, 2028	$11,417.37

4. Security Deposit and Late Charges

Upon execution of this Lease, Tenant shall deposit with Landlord the sum of $20,300.00 as security for the faithful performance of Tenant's obligations (the "Security Deposit"). Landlord shall return the balance within sixty (60) days after the Expiration Date.

Tenant shall also pay a refundable key and access card deposit of $150.00. Rent not received within five (5) days after its due date shall bear a late charge equal to five percent (5%) of the overdue amount.

5. Additional Rent

Tenant shall pay, as Additional Rent, its proportionate share (5.3%) of the amount by which real estate taxes and operating expenses for any calendar year exceed those for the base year 2024. Landlord shall provide a statement of such charges within one hundred twenty (120) days after each calendar year, and Tenant may audit the statement within ninety (90) days after receiving it.

6. Use of Premises

Tenant shall use the Premises solely for general office purposes and for no other purpose without Landlord's prior written consent. Normal Building hours are 8:00 a.m. to 7:00 p.m. on business days.

7. Maintenance and Repairs

Tenant shall keep the interior of the Premises in good order and condition, ordinary wear and tear excepted. Landlord shall maintain the roof, structure and common systems, and shall begin non-emergency repairs within ten (10) days after written request.

8. Insurance

Tenant shall maintain commercial general liability insurance with limits of not less than $1,000,000.00 per occurrence and $2,000,000.00 in the aggregate, naming Landlord as an additional insured, and shall deliver a certificate of insurance to Landlord before the Commencement Date and on each renewal of the policy.

9. Assignment and Subletting

Tenant shall not assign this Lease or sublet any part of the Premises without Landlord's prior written consent. Landlord shall respond to a request within fifteen (15) days. Any consent fee shall not exceed $750.00.

10. Compliance with Laws

Tenant shall, at its own expense, comply with all Laws applicable to its use and occupancy of the Premises, including accessibility requirements, fire and life-safety codes and environmental regulations, and shall obtain every permit and license required for the conduct of its business. Landlord shall comply with Laws affecting the structure and common systems of the Building, except to the extent the need for compliance arises from Tenant's particular use. Neither party shall be liable to the other for delay caused by a change in Laws.

11. Hazardous Materials

Tenant shall not bring, generate, store or dispose of any hazardous or toxic substance on the Premises, other than customary office and cleaning supplies used in compliance with Laws. Tenant shall promptly notify Landlord of any release or threatened release, shall cooperate in any investigation, and shall indemnify Landlord against all claims, costs and liabilities arising from any breach of this Section. Remediation shall be performed by a qualified contractor reasonably acceptable to Landlord, within thirty (30) days where practicable.

12. Subordination and Estoppel

This Lease is subject and subordinate to any mortgage or ground lease now or later affecting the Building, provided the holder agrees not to disturb Tenant's possession while Tenant is not in default. Within fifteen (15) days after request, Tenant shall deliver a signed statement confirming that this Lease is in effect, the dates to which rent has been paid, and whether any default is claimed. Failure to respond shall be deemed confirmation of the facts stated in the request.

13. Casualty

If the Premises are damaged by fire or other casualty, Landlord shall, within sixty (60) days, notify Tenant whether the damage can be repaired within two hundred seventy (270) days. If it cannot, either party may terminate this Lease by written notice. If repairs are to proceed, rent shall abate in proportion to the area of the Premises rendered unusable, from the date of the casualty until repairs are substantially complete.

14. Condemnation

If all of the Premises, or so much that Tenant cannot reasonably operate, is taken by eminent domain, this Lease shall terminate on the date title vests in the taking authority, and rent shall be apportioned to that date. Tenant shall have no claim against Landlord for the value of the unexpired term, but may pursue a separate award for its trade fixtures, moving expenses and unamortized improvements, to the extent permitted.

15. Access and Alterations

Landlord may enter the Premises on reasonable notice, and at any time in an emergency, to inspect, repair or show the Premises to prospective purchasers and lenders. Tenant shall make no alterations costing more than $7,500.00 without Landlord's prior written consent, which shall not be unreasonably withheld, and all approved work shall be done by licensed contractors carrying insurance reasonably satisfactory to Landlord.

16. Brokers

Each party represents that it has dealt with no broker in connection with this Lease other than the brokers identified to the other in writing, whose commissions shall be paid by Landlord under a separate agreement. Each party shall indemnify the other against claims by any other broker claiming through it, including reasonable attorneys' fees incurred in defending such a claim.

17. Signs and Parking

Tenant may install building-standard suite signage at its own cost, subject to Landlord's approval of design and location. Tenant is entitled to use up to four (4) unreserved parking spaces in the Building's garage at the prevailing monthly charge, currently $175.00 per space, which may be adjusted by Landlord on thirty (30) days' notice. Landlord is not responsible for vehicles or their contents.

18. Limitation of Liability

Landlord's liability under this Lease shall be limited to its interest in the Building, and no partner, member, officer or employee of Landlord shall have personal liability. Neither party shall be liable to the other for consequential, special or punitive damages, except that this limitation does not apply to Tenant's obligations under the holdover and indemnity provisions of this Lease.

19. Governing Law and Venue

This Lease is governed by the laws of the state in which the Building is located, without regard to conflict of laws principles. Each party submits to the exclusive jurisdiction of the state and federal courts located in the county of the Building and waives any objection to venue. The prevailing party in any action shall recover its reasonable attorneys' fees and costs.

20. Renewal; Termination at Expiration

Tenant may elect to renew this Lease for one additional term of three (3) years, or to terminate this Lease at the Expiration Date, by giving Landlord at least one hundred eighty (180) days' prior written notice of its election before the Expiration Date. Notice shall be delivered by personal hand delivery with a signed receipt, addressed to Landlord at 4 Maple Avenue, Raleigh, NC 27601, with a copy to Landlord's managing agent, Tidewater Asset Services.

Landlord shall acknowledge receipt of any notice within fourteen (14) days. Renewal rent shall be ninety-five percent (95%) of the then-prevailing market rate, as the parties shall agree.

21. Holding Over

If Tenant remains in possession of the Premises after the Expiration Date without Landlord's written consent, Tenant shall be a tenant at sufferance and shall pay holdover rent equal to two hundred percent (200%) of the

Base Rent in effect immediately before the Expiration Date, prorated daily, plus all Additional Rent.

Acceptance of holdover rent shall not create a new tenancy or extend the Term.

22. Default and Remedies

If Tenant fails to pay rent within fifteen (15) days after written notice, or fails to perform any other obligation within thirty (30) days after written notice, Landlord may terminate this Lease or re-enter the Premises, and recover all rent and damages permitted by Laws.

23. Amendments

No amendment is effective unless signed by both parties. The parties' prior letter agreement dated July 17, 2024 is superseded by this Lease. Questions about this Lease may be directed to Tidewater Asset Services.

IN WITNESS WHEREOF, the parties have executed this Lease as of the date first written above. Fairmont Commercial Trust Corp. (Landlord) / Evergreen Coffee Roasters Inc. (Tenant).